

23LBCV01593 23LBCV01593

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-08-03

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Case Number: 23LBCV01593 Hearing Date: August 3, 2026 Dept: S25

Motion: Plaintiff, Niko Ruiz, a minor, by and through his Guardian ad Litem, Lisset Lopez's Petition to Approve Minor's Compromise

Moving Parties: Plaintiff, Niko Ruiz, a minor, by and through his Guardian ad Litem, Lisset Lopez ("Plaintiff" or "Claimant")

Responding Party: None

Tentative Ruling

The Court has reviewed the proposed settlement and finds that the settlement itself is fair and reasonable. The minor claimant here has agreed to dismiss his claims; Defendant CSI Services, Inc. will pay \$10,000.00; Defendant Frank Colaruotolo Consulting, Inc. will pay \$73,325.00; and Defendant Pacific Crane Maintenance, LLC will pay \$100,000.00 to minor claimant. (Pet. ¶ 10.b.) A total of \$183,325.00 will be paid to minor claimant. (Pet. ¶ 10.c.) Plaintiff Graciela Ruiz will receive \$183,325.00; Plaintiff Martin Ruiz will receive \$183,325.00. (Pet. ¶ 11.b.5.) The amount of attorney's fees requested, representing 33 percent of the gross settlement to minor claimant, is \$60,101.06. (Pet. ¶ 13.a, Attachment 13a ¶¶ 3-10.) The minor claimant, through his guardian agreed to a "contingency fee agreement [which] states that the fee is 33.33% pre-litigation and 40% in litigation." (Attachment 13a ¶ 3.) Plaintiff's counsel only seeks the 33% prelitigation rate. (Attachment 13a ¶ 3.) The petition does not seek any medical expenses. (Pet. ¶ 12.) The petition further seeks \$3,021.81 for expenses (other than medical expenses) that have been incurred or advanced. (Pet. ¶ 13.b, Attachment 13b.) Claimant will receive \$120,202.13 after payment of all fees and expenses. Here, the Court finds that Plaintiff's counsel has set sufficient facts breaking down and explaining the legal fees and costs incurred in litigating this matter. (Cal. Rules of Court, rule 7.955(b).)

The Petition is GRANTED.